



Abdi & another v Obila; Ainushams Hospitality Group Ltd (Interested Party); Kilifi Hotels Limited (Intended Defendant) (Environment and Land Case E003 of 2023) [2025] KEELC 4599 (KLR) (2 April 2025) (Ruling)

Neutral citation: [2025] KEELC 4599 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT MALINDI
ENVIRONMENT AND LAND CASE E003 OF 2023**

EK MAKORI, J

APRIL 2, 2025

BETWEEN

NIMO AHMED ABDI 1ST PLAINTIFF

ABDIRAHMAN MUHUMED ABDI 2ND PLAINTIFF

AND

ISAAC JUMA OBILA DEFENDANT

AND

AINUSHAMS HOSPITALITY GROUP LTD INTERESTED PARTY

AND

KILIFI HOTELS LIMITED INTENDED DEFENDANT

RULING

1. The Notice of Motion dated 5th March 2023 was reckoned by this Court under Certificate of Urgency on 7/3/2025. It was ordered to be served for inter partes hearing on 13/3/2025.:
2. The court gave interim measures to secure the substratum of the suit and redirected further service.
3. It came for inter partes hearing today. The Respondents albeit served have not responded yet again.
4. I reckon there is a consent which is being discharged by the Intended 3rd Defendant/Applicant who avers that the property in issue the subject of the impugned consent affects his proprietary rights and that it is the holder of the title No. 10173 been transferred to any another party whatsoever.
5. Since the consent order is contested, it will be in the interest of justice that the intended 2nd Defendant/Applicant be joined in this proceedings, the consent set aside and parties square it out on merit.



6. Consequently the application dated 5th March 2025 is hereby allowed to the extent that;
 - i. The consent order entered on 16th February 2023 be and is hereby set aside ex debito justitiae.
 - ii. That the leave be and is hereby granted to the applicant to be joined in these proceedings as 2nd Defendant to defend/protect the matter on merit.
 - iii. The orders issued on 13th March 2025 to persist to the extent that there shall be no dealings to be registered concerning suit property described as LR No. 28432 Amalgamation LR No 10173 and LR 10174 and that the consent dated and entered on 16th February 2023 as endorsed on 17th February 2023 to be of no effect until this matter is heard and determined on merit.
7. The now 2nd Defendant to file and serve the Interested Defendant, witness statements and bundle of documents within 14 days hereof with corresponding leave to the other parties to respond within 14 days of service.
8. Pre trials on 1st May 2025.
9. Costs in the cause.

DATED, SIGNED, AND DELIVERED AT MALINDI VIRTUALLY ON THIS 2ND DAY OF APRIL 2025.

E. K. MAKORI

JUDGE

In the Presence of:

